

From Personal Rule to Constitutional Presidency: The SCOPE Framework for Tracing Philippine Executive Power

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Abstract

Accounts of Philippine presidents often proceed as a succession of biographies, elections, and accomplishments. Such narratives are accessible but can obscure the institutional question that gives executive history its analytical value: what made an officeholder authoritative, what constrained that authority, and how did executive power reach and answer to society? This conceptual-historical article analyzes The Evolution of Philippine Politics and Governance as an instructional source and develops the Source-Constraints-Organization-Public Accountability-Executive Succession (SCOPE) framework. The framework compares executive authority across precolonial polities, Spanish and American colonial administration, the First Republic, the Commonwealth, the Japanese-sponsored Second Republic, the constitutional and authoritarian transformations associated with the 1973 order, the 1986 transition, and the 1987 constitutional republic. The analysis argues that Philippine executive development was neither a linear transfer from *datu* to president nor a simple progression toward democracy. It involved institutional layering: local leadership, imperial command, colonial bureaucracy, revolutionary sovereignty, electoral legitimacy, emergency authority, and constitutional checks accumulated, competed, and were repeatedly reorganized. SCOPE distinguishes five dimensions: the source of executive authority; legal and political constraints; organizational reach; mechanisms of public accountability; and rules governing succession, incapacity, and emergency. It also supplies a source-criticism protocol for teaching politically sensitive history. This protocol is necessary because repeated instructional claims may rest on disputed evidence, as demonstrated by the officially delisted Code of Kalantiaw narrative. The article contributes an analytical method rather than new archival findings or measured classroom outcomes. It enables students and researchers to compare institutions across regimes without reducing political history to praise or condemnation of individual leaders.

Keywords: Philippine presidency; executive power; constitutional history; political institutions; historical source criticism; political education

Introduction

The history of Philippine executive power is often taught through a familiar sequence: precolonial chieftains, Spanish governors-general, American governors, Commonwealth presidents, wartime executives, and presidents of the independent republic. The sequence provides orientation, but chronology alone does not explain institutional change. A *datu*, a colonial governor-general, a president elected by a revolutionary assembly, and a president elected by national suffrage are not earlier and later versions of the same office. They derive authority from different sources, operate through different organizations, and answer to different communities and rules.

Biography can deepen political history, yet it can also personalize structures. Lists of achievements invite comparison among leaders while concealing changes in sovereignty, jurisdiction, suffrage, bureaucracy, legislative power, judicial review, and emergency authority. Presidential numbering creates a similar impression of continuity. The ordinal sequence is politically meaningful, but it crosses constitutional orders whose institutions were not equivalent. The First Republic, Commonwealth, Japanese-sponsored Second Republic, Third Republic, Fourth Republic, and Fifth Republic emerged from distinct combinations of constitutional text, war, occupation, revolution, and electoral practice.

The source module, *The Evolution of Philippine Politics and Governance*, assembles a broad narrative from precolonial government through the presidency of Rodrigo Duterte and contains biographies, election tables, accomplishments, and historical summaries (Agno, 2023). Its breadth makes it useful for introductory instruction, but converting it into a scholarly article requires a focused contribution and stronger source discipline. This article therefore reorganizes the material around executive institutions. It does not reproduce the module's presidential profiles or treat every inherited claim as settled fact.

The central argument is that Philippine executive development is best understood as institutional layering. Colonial centralization did not simply erase local authority; electoral presidency did not automatically eliminate personalism; constitutional limits did not make emergency power disappear; and democratic restoration did not remove the administrative inheritance of earlier regimes. Institutions changed through replacement, adaptation, and survival. A comparative framework must therefore examine both formal rules and the political conditions under which those rules operated.

Purpose of the Article

The article has three objectives: (a) to distinguish executive offices across major periods of Philippine political development; (b) to develop the SCOPE framework for comparing the source, constraint, organization, accountability, and succession of executive authority; and (c) to propose a source-criticism procedure for historical and political education. The guiding question is: How can the evolution of Philippine chief executives be analyzed institutionally without reducing history to a list of officeholders or assuming that similarly titled offices exercised equivalent power?

Conceptual-Historical Approach

Source Base and Unit of Analysis

The article uses conceptual-historical synthesis. Agno's instructional module supplies the initial chronological architecture. Constitutional texts, public laws, executive issuances, official institutional histories, and established historical scholarship are used to clarify authority and correct doubtful claims. The primary comparison concerns executive arrangements rather than the personal character or performance ranking of individual leaders. No new archival collection, election dataset, survey, or causal evaluation is reported.

The unit of analysis is an executive order: a historically specific arrangement linking an officeholder to a source of authority, territory, administrative organization, accountability mechanism, and succession rule. This choice prevents a title from doing

too much analytical work. 'President' may refer to an executive elected by a legislature, directly elected by voters, operating under occupation, governing in exile, exercising emergency powers, or serving within an amended constitutional structure. The office must be read with the regime that constituted it.

A Source-Criticism Requirement

Political history requires provenance as well as narrative. A claim should be tested by asking who produced it, when, for what purpose, from which earlier source, and whether independent evidence supports it. Repetition in textbooks or online presentations does not establish authenticity. The instructional source, for example, presents the Code of Kalantiaw as a pre-Spanish written law. The National Historical Institute's Resolution No. 12, series of 2004, concluded that the code had no valid historical basis, and the associated historical marker was delisted (National Historical Commission of the Philippines, n.d.). Scott's source criticism traced the claim to modern fabrication rather than a precolonial document (Scott, 1984).

The correction does not imply that precolonial societies lacked law or political order. It requires historians to reconstruct those orders from credible linguistic, archaeological, ethnographic, and early documentary evidence. Scott (1994) and Junker (1999) describe diverse lowland barangays, chiefdoms, trading polities, and sultanates rather than one uniform national government. Source criticism therefore strengthens precolonial history by replacing a false code with a more complex account of political diversity.

Historical Transformations of Executive Authority

Precolonial Polities: Embedded and Plural Authority

Before Spanish consolidation, political authority was locally embedded and varied across regions. Datus and other rulers exercised leadership in communities linked by kinship, alliance, tribute, trade, warfare, and customary obligation. Councils, elite families, ritual authority, and community expectations could shape rule. Larger sultanates and trading centers developed more extensive institutions than small settlements. Describing every barangay as a miniature modern state or monarchy risks projecting later legal categories backward. The important institutional point is plurality: authority depended on social relations and local political economy rather than a single archipelagic executive center.

Spanish Rule: Imperial Delegation and Centralization

Spanish colonization created a centralized hierarchy under the Crown. The governor-general combined executive command with important legislative, military, patronage, and supervisory functions. Provincial and municipal offices connected Manila with local communities, while religious orders and local principalia formed powerful intermediaries. Executive authority originated outside the colony and was accountable upward through imperial institutions more than downward to a Filipino electorate. The colonial state nevertheless depended on negotiated local compliance, making centralization real but incomplete.

This period transformed organizational reach. Tribute, forced labor, policing, ecclesiastical administration, and municipal structures gave the state a more durable territorial presence. It also established patterns of concentrated executive discretion and mediated local governance that remained relevant under later regimes. Corpuz (1957)

emphasizes that Philippine bureaucracy developed through colonial purposes before becoming the machinery of a sovereign republic.

American Rule: Bureaucratic Expansion and Limited Representation

American military rule initially concentrated governmental powers in the military governor. Civil government then transferred executive authority to an appointed governor-general while expanding a professionalized colonial administration. Representative institutions developed gradually: the Philippine Assembly opened in 1907, and the Jones Law of 1916 created an elected bicameral legislature while declaring a policy of eventual independence. The Philippine Senate's institutional history identifies the Jones Law as the legal foundation of the all-Filipino legislature (Senate of the Philippines, n.d.).

The result was a dual development. Electoral politics created national Filipino leaders and parties, but sovereignty and the chief colonial executive remained tied to the United States. Filipino political elites learned to negotiate budgets, appointments, legislation, and independence within institutions they did not fully control. Cullinane (2003) shows how elite networks and representative institutions interacted during this transition. Executive evolution therefore involved political apprenticeship and colonial subordination at the same time.

Revolution, Malolos, and Constitutional Sovereignty

Revolutionary governments claimed authority from the struggle for independence and from emerging representative institutions. The 1899 Malolos Constitution located sovereignty in the people, created a representative assembly, and established a presidency within a constitutional republic. Executive authority was not merely the continuation of military command; it was an attempt to organize revolutionary legitimacy through law. The republic's short life under war conditions limited institutional consolidation, but the constitutional experiment remains essential because it articulated a Filipino claim to sovereign statehood before American colonial government was established throughout the archipelago.

Commonwealth and Wartime Executives

The 1935 Constitution established a republican presidential framework during the Commonwealth transition. National election supplied the executive's immediate mandate, while a cabinet, legislature, courts, and civil service organized government. Constitutional amendment altered term and legislative arrangements, demonstrating that presidential design was itself contested. The Commonwealth also governed in exile during the Second World War, showing that constitutional continuity may survive territorial displacement when allied recognition and an existing legal order sustain the government.

Japanese occupation produced a competing executive order. The Philippine Executive Commission and the 1943 Constitution operated under Japanese military dominance. The Second Republic had Filipino institutions and a constitutional text, but its effective autonomy was constrained by occupation. A serious comparison must distinguish formal competence from external control. It must also avoid treating wartime officeholding as identical to executive power under ordinary sovereignty.

Independence, Authoritarian Transformation, and Democratic Restoration

Independence in 1946 transferred the 1935 constitutional presidency to a sovereign republic, but it preserved many administrative, party, and elite structures formed during colonial rule. Postwar presidents operated through elections and separated institutions while facing patronage, regional inequality, armed conflict, and dependence on personal political networks. Hutchcroft and Rocamora (2003) characterize the broader democratic problem as strong social demands mediated by weak political institutions. Executive leadership therefore combined constitutional authority with personal and coalition-based power.

The declaration of martial law under Proclamation No. 1081 in 1972 and the subsequent constitutional changes radically concentrated authority. The 1973 Constitution formally introduced a parliamentary structure, but amendments, decrees, martial-law administration, and the continued authority of Ferdinand Marcos produced a system in which constitutional form and political practice diverged. Thompson (1995) analyzes the period as personalistic authoritarian rule rather than a routine parliamentary transition. This is a critical lesson for institutional analysis: reading the constitutional chart alone cannot establish where effective power was located.

The 1986 transition again demonstrated the constitutive role of popular action and provisional authority. Proclamation No. 3 adopted a provisional constitution and authorized governmental reorganization while a new charter was prepared. The 1987 Constitution restored a directly elected presidential system and distributed checking functions among Congress, the judiciary, constitutional commissions, impeachment, public accountability provisions, and a strengthened bill of rights. It also imposed a single six-year presidential term and more specific controls on martial law and suspension of the writ. These safeguards reflected historical experience, but their effectiveness still depends on institutions, political competition, public vigilance, and judicial enforcement.

Table 1

Comparative institutional map of Philippine executive orders

Executive order	Source and organization	Principal constraints	Accountability and succession
Precolonial polities	Kinship, custom, alliance, trade, tribute; plural barangays, chiefdoms, and sultanates	Councils, elite relations, customary obligations, rival polities, community capacity	Reciprocity, reputation, allegiance, conflict; succession varied by polity
Spanish colonial	Delegated Crown authority; governor-general and centralized colonial hierarchy	Imperial review, law, Church-state relations, local intermediaries, distance	Upward imperial accountability; royal appointment and replacement
American colonial	US sovereignty; appointed governor-general and expanding civil bureaucracy	US law and supervision; elected legislature after staged reforms	Colonial appointment; growing electoral accountability in legislature and local offices
First Republic	Revolutionary sovereignty constitutionalized through the Malolos order	Assembly, ministers, constitutional rules, and wartime conditions	Representative election and constitutional responsibility; succession constrained by war
Commonwealth / 1935	National election; presidential cabinet and civil service under transitional sovereignty	Legislature, courts, constitution, US authority before independence	Election, impeachment, vice-presidential succession; exile during war
Occupation / 1943	Assembly-elected president and state organs operating under Japanese occupation	Formal constitution but decisive external military control	Institutional forms under constrained sovereignty; dissolution at war's end
Martial law / 1973 order	Emergency declaration, decrees, amendments, and centralized	Formal institutions weakened by coercion, controlled politics, and	Managed constitutional processes; succession and

Executive order	Source and organization	Principal constraints	Accountability and succession
	presidential apparatus	concentrated rule	accountability subordinated to regime power
1987 constitutional republic	Direct election; cabinet and national administrative state	Congress, courts, commissions, rights, impeachment, term limit, emergency review	Elections, public law, oversight, vice-presidential succession, constitutional emergency rules

Note. The categories summarize dominant arrangements and should not be read as complete descriptions of every region, amendment, or period. Formal authority and effective political power may differ.

The SCOPE Framework

SCOPE turns the historical comparison into a reusable method. Its five dimensions are connected. A source of authority has practical meaning only when organization can implement decisions. A formal constraint matters only when an institution can enforce it. Public accountability depends on who is recognized as part of the political public. Succession rules become most visible during death, incapacity, war, revolution, or contested elections.

Source of Authority

The first question is why the executive may command. Possible answers include kinship, custom, conquest, imperial delegation, revolutionary sovereignty, military occupation, legislative selection, direct election, or provisional popular mandate. Several sources may coexist. The 1935 Commonwealth presidency combined Filipino electoral authorization with a transition created under United States law. The 1986 government invoked direct popular mandate while exercising provisional authority outside the amended 1973 order. Identifying the source prevents the analyst from treating legality, legitimacy, and effective control as synonyms.

Constraints on Executive Power

Constraints include constitutions, legislatures, courts, councils, parties, armed forces, foreign sovereigns, religious institutions, elite coalitions, public opinion, and organized social resistance. Their existence on paper is not enough. The analyst must ask who can activate a constraint, what remedy is available, and whether compliance can be compelled. The comparison between the 1973 constitutional design and martial-law practice demonstrates why enforceability is central.

Organization and Territorial Reach

Executive power operates through people, offices, records, revenue, coercion, and communication. The organizational dimension traces the movement from locally embedded leadership to colonial hierarchies and a national administrative state. It asks which decisions can be implemented beyond the capital, how local officials are selected, how resources are collected, and how bureaucratic expertise interacts with political appointment. Institutional continuity is often clearest here: a new constitution may replace the source of authority while retaining agencies, routines, and territorial structures from an earlier order.

Public Accountability

Accountability asks to whom reasons are owed and through which mechanisms. Elections are one mechanism, but not the only one. Legislative inquiry, audit, judicial review, impeachment, disclosure, protest, press freedom, administrative discipline, and

community reciprocity can also constrain executives. The size and composition of the accountable public have changed with citizenship, suffrage, class, gender, locality, and colonial status. A historical account should therefore identify both the mechanism and who could use it.

Executive Succession and Emergency

Succession exposes the durability of an order. Rules may govern election, appointment, hereditary claim, vice-presidential replacement, incapacity, impeachment, term limits, exile, or dissolution. Emergency authority tests the same system under stress. The analyst should ask who declares an emergency, which powers expand, which rights or institutions remain protected, who reviews the declaration, and how ordinary government is restored. These questions connect constitutional design with the historical experience of war, occupation, martial law, and revolution.

Table 2

SCOPE questions for historical and political analysis

Dimension	Diagnostic question	Preferred evidence	Common analytical error
Source	What makes the executive's command lawful, legitimate, or effective?	Constitution, law, appointment, election, proclamation, contemporary record	Assuming control, legality, and legitimacy are identical
Constraints	Who can refuse, review, reverse, remove, or punish the executive?	Institutional powers, cases, legislative records, enforcement practice	Listing formal checks without testing enforceability
Organization	Through which offices, resources, and local agents do decisions travel?	Administrative law, budgets, organization charts, records, local accounts	Equating a leader's intention with state capacity
Public accountability	To whom are reasons owed, and who can impose a consequence?	Election rules, audits, inquiries, press, protests, rights, disciplinary records	Reducing accountability to elections alone
Executive succession	How does authority transfer in ordinary and emergency conditions?	Term, vacancy, incapacity, impeachment, emergency, transition, and exile rules	Treating crises as exceptions unrelated to institutional design

Discussion

Institutional Layering Rather Than Linear Progress

The comparison challenges a linear story in which personal rule gradually becomes constitutional presidency. Philippine political development contains genuine expansions of representation, rights, and institutional checks, but it also contains reversals, emergency concentrations, external domination, and durable informal power. Local mediation survived centralization. Colonial bureaucracy survived decolonization. Electoral competition coexisted with patronage and personalism. Constitutional presidency was repeatedly reshaped by war, occupation, amendment, and revolution.

Layering also explains why formal replacement does not produce an entirely new state. The 1987 Constitution redesigned executive limits after authoritarian rule, yet it operated through an inherited national bureaucracy, established local political networks, security institutions, and socioeconomic inequalities. Institutional analysis should therefore ask which elements were abolished, which were renamed, which were constrained, and which continued under new authority.

Constitutional Text and Political Practice

SCOPE requires comparison between rule and practice. Constitutional text defines lawful competence, but political actors can evade, reinterpret, or disable constraints. Conversely, informal practices can sometimes produce restraint even when formal law is weak. Historical judgment should not collapse these levels. The analyst can first reconstruct the legal order, then examine implementation through cases, legislative records, administrative evidence, contemporary accounts, and credible scholarship.

This distinction is especially important in politically polarized history. Describing a constitutional power is not an endorsement of its use; documenting an accomplishment does not settle the legitimacy of a regime; and identifying a rights violation does not eliminate the need to understand the institution that enabled it. A scholarly article should make evidence and criteria visible so that evaluation can be debated without turning history into a personality contest.

Implications for Political Education

The SCOPE framework can convert presidential profiles into comparative inquiry. Students may select two periods and identify the source of authority, institutional constraints, organization, public accountability, and succession rules. They can then compare constitutional provisions with an executive issuance, election record, court decision, administrative document, or contemporary account. This exercise moves learning from memorization toward disciplined institutional explanation.

Source provenance should be assessed explicitly. A four-step record is sufficient for introductory work: identify the claim; locate the earliest available source; compare it with an authoritative or independent source; and classify the claim as corroborated, disputed, superseded, or unresolved. The Kalantiaw example shows why this process matters, but the procedure should also be used for election figures, quotations, rankings, policy achievements, and claims about presidential intent. Attractive facts require the same scrutiny as controversial ones.

Research Agenda

The SCOPE framework is conceptual and should be tested through research. Comparative studies could operationalize executive constraints, administrative reach, and accountability across constitutional periods. Archival work could trace how agencies, provincial offices, appointment systems, and emergency practices survived regime change. Classroom studies could examine whether SCOPE improves students' ability to distinguish officeholder, constitution, regime, and effective power.

Further work should also examine regional variation and voices that national executive narratives marginalize. Muslim sultanates, Indigenous political orders, local governments, social movements, women, workers, and communities affected by state coercion cannot be treated merely as the setting for presidential action. Their records may change how organizational reach, accountability, and legitimacy are understood. No claim is made here that one framework can exhaust the political history of the archipelago.

Conclusion

The evolution of Philippine chief executives cannot be explained by a succession of names and achievements. Executive offices arose from different sources of authority, legal orders, administrative capacities, publics, and transition rules. Precolonial leaders governed plural polities; colonial governors exercised delegated imperial power; revolutionary and Commonwealth institutions pursued constitutional sovereignty; wartime governments operated under exile or occupation; martial law concentrated authority; and the 1987 order rebuilt presidential government with renewed checks.

The SCOPE framework makes those differences comparable through five questions: What is the source of authority? What constrains it? How is it organized? To which public is it accountable? How does it survive succession or emergency? Applied with source criticism, these questions replace a personality-centered timeline with an institutional history of power. They also preserve a central democratic lesson: the title of an office does not determine the character of government; authority becomes constitutional only through enforceable rules, accountable institutions, and a public capable of demanding reasons.

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